



Government of Malawi



NATIONAL GUIDELINES FOR THE SELECTION AND PARTICIPATION OF CHILDREN TO BE CO-OPTED AS CHILD COMMISSIONERS FOR NATIONAL CHILDREN'S COMMISSION (NCC)





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Foreword

The protection, promotion, and fulfillment of children's rights are fundamental to building a just and inclusive society. The National Children's Commission (NCC), established under the National Children's Commission Act, No. 12 of 2019, and the amended Act No.24 of 2022 stands as a beacon of commitment to advancing the welfare of children in Malawi.

As a nation, we recognize that children are not just the future but an integral part of the present, with the right to meaningfully participate in decisions that shape their lives. These guidelines, developed by the NCC, provide a framework to ensure that children are central to the decision-making processes. The guidelines lay the groundwork for a participatory approach that respects diversity and promotes equity through a transparent and inclusive selection process of Child Commissioners,

This document reflects Malawi's alignment with international conventions and national laws and reiterates the country's collective efforts to empower children as agents of change. Among the national documents include the 1994 Constitution of Malawi, Child Care Protection and Justice Act (CCJP) of 2010, Sustainable Development Goals (SDGs) among other legal documents and Policies. The national documents were developed with linkage to the following international laws; the Convention on the Rights and Welfare of Child (CRC), the African Charter on the Rights and Welfare of Children (ACRWC) among other international legal documents.

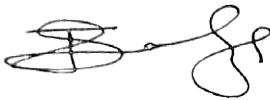
Ordinarily, these Guidelines for co-opting children as Child Commissioners have not been developed in a vacuum but rather considered some insights from the existing child participation guidelines.



It is pleasing to note that there are National Child Participation Guidelines which support children to express their views through different platforms namely Children's Corners, in and out of school clubs, religious child participation forums and child parliament.

The government of Malawi is in the process of cascading all the child participation opportunities in particular child parliament to all the districts from grassroot level. It is therefore hoped that through the effective implementation of National Guidelines for Co-opting Children into NCC as Child Commissioners, we shall build a child-friendly society that embraces every child's potential to contribute to the development of the nation.

Let us all commit to supporting this initiative and ensuring that the voices of our children are heard, valued, and acted upon.



Honorable Jean Muonaoauza Sendeza, MP

MINISTER OF GENDER COMMUNITY DEVELOPMENT AND SOCIAL WELFARE

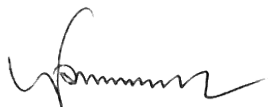
Preface

Children's participation in governance and decision-making is not merely a principle; it is a cornerstone of inclusive development. The National Children's Commission (NCC) was created to institutionalize this principle, ensuring that children's voices are amplified at the highest levels of decision-making.

The **Guidelines for the Selection of Child Commissioners** mark an important milestone in operationalizing the NCC's mandate. They provide a structured, transparent, and inclusive process that reflects best practices in child participation. Further the guidelines aim to establish a model of governance where the potential and perspectives of children are celebrated and respected.

The NCC remains committed to ensuring that these guidelines are effectively implemented. This document is not just a guide, it is a call to action for all stakeholders to work together to support children in creating a society for them to become active participants and not passive beneficiaries.

We urge all stakeholders to collaborate with the NCC to use this document as a tool to promote the meaningful inclusion of children and to inspire the next generation of leaders in Malawi.



Bishop Vincent Mwakhwawa

CHAIRPERSON FOR NATIONAL CHILDREN'S COMMISSION



Acknowledgement

The National Children's Commission (NCC) extends its deepest gratitude to the many individuals and organizations who contributed their time, expertise, and resources towards the development of these guidelines.

The NCC is thankful to the Ministry of Gender, Community Development, and Social Welfare for its steadfast leadership and guidance. Acknowledgement also goes to Save the Children International (SCI) for the financial support channeled through NGO-CCR towards the support of the development processes of the Guidelines. In addition, the NCC would like to appreciate the invaluable technical support of child rights-focused organizations that included Propel Health, ECD Coalition, ActionAid, Article III, World Vision International (WVI), Non-Governmental Organization Regulatory Authority (NGORA), child participation structures represented by Lilongwe Child Reference Group (CRG), whose insights and perspectives were instrumental in shaping this document.

Finally, the Commission recognize the NCC Secretariat team for their dedication and commitment towards creating a document that aligns with Malawi's vision for equitable and inclusive governance. This collective effort is a step toward building a society where children are not just protected but are also empowered to lead.



Acronyms

ABBREVIATION	DESCRIPTION
NCC	National Children's Commission
NGO CCR	Non-Governmental Organizations Coalition on Child Rights
SCI	Save the Children International
ACRWC	African Charter on the Rights and Welfare of Children
CRC	Convention on the Rights of Children
CCPJA	Child Care Protection and Justice Act
NCP	National Children's Parliament
SDGs	Sustainable Development Goals
NGORA	Non-Governmental Organization Regulatory Authority
WVI	World Vision International
CRG	Child Reference Group



Glossary

National Children's Commission	A body established under Act of Parliament mandated government and different players of children's services and hold them accountable for failing to discharge their duties
Child	Any person below the age of 18 years
Child participation	An informed and willing involvement of children in different ways and/or in any matter concerning them directly or indirectly
Children's Corners	A concept that complements provision of care for children where families, for whatever reason, are unable to provide all the support they need
National Children's Parliament	A participation platform for children from the age of 10–18 at national level involving children from 34 administrative districts of the country
District Children's Parliament	A participation platform for children from the age of 10–18 at district comprising child representatives from across the country
Children Reference Group	Children's platform that supports participation of children in all matters of their concern and provide stakeholders with easy access to children's views for the purpose of child right-based programming, implementation and evaluation both at local and international level



Executive Summary

The National Children's Commission Act heralded a new era of child rights advocacy in Malawi by establishing the National Children's Commission (NCC). Central to this mandate is the meaningful inclusion of children in decision-making processes, ensuring their voices influence policies and programs that affect their lives.

This document presents the Guidelines for the Selection of Child Commissioners, which outline a transparent, inclusive, and child-centered framework for selecting children to be co-opted as Child Commissioners to the NCC. The guidelines aim to ensure that the process reflects the principles of equity, merit, and diversity, while promoting participation from all sectors of society.



Outline of the guidelines

The following are the key highlights of the guidelines:

1. **Purpose and Objectives:** Establishing a participatory process that is fair, inclusive, and merit-based, ensuring capable and committed candidates are selected.
2. **Eligibility Criteria:** Defining clear requirements for age, experience, and citizenship to uphold fairness and competence.
3. **Selection Process:** Detailing steps, including public notices, candidate identification through child participation structures, and essay competitions to ensure broad and equitable participation.
4. **Evaluation and Confirmation:** Establishing robust evaluation mechanisms to guarantee transparency and accountability.
5. **Appeal and Complaints Mechanism:** Providing a child-friendly platform for addressing grievances, ensuring fairness and trust in the process.



1.0

Purpose of the Guidelines

The active participation of children in decision-making processes is fundamental to ensuring their voices are meaningfully heard in shaping policies and programs that directly affect their lives. These guidelines aim to establish a transparent, inclusive, and child-centered approach to the selection of co-opted Child Commissioners for the National Children's Commission (NCC), promoting fairness, diversity, and accountability. By implementing these guidelines, the NCC seeks to set a benchmark for inclusive governance in Malawi, aligning it with the national Constitution, Sustainable Development Goals (SDGs) and international conventions. This document serves as a vital tool for empowering children, fostering their leadership potential, and advancing the nation's commitment to child rights.

General Purpose

To facilitate a transparent, inclusive, and child-centered process for selecting Child Commissioners.

Specific Objectives

- 1) To define clear and objective criteria for identifying capable and committed candidates.
- 2) To enhance an equitable and participatory selection process;
and
- 3) To increase awareness among stakeholders about the roles and responsibilities of Child Commissioners and their critical contribution to the NCC.



2.0

Eligibility Criteria

The following are the criteria for selecting children to be co-opted as Child Commissioners.

Eligibility Requirements:

- a) Age:** Candidates must be between 16 and 18 years old.
- b) Experience:** Candidates must be active members of existing child participation structures.
- c) Citizenship:** Candidates must be Malawian citizens residing in Malawi throughout their tenure.

3.0

Selection Process

The following is the selection process for children to be co-opted as Child Commissioners.

1. Public Notice (21 Days):

- The NCC shall issue a public notice providing a brief background of the NCC, eligibility criteria, tenure, and roles of child commissioners.
- The notice shall be widely disseminated through various channels, including radio, newspapers, television, social media, Schools and government platforms that will guarantee accessibility for children with disabilities including those with albinism.



2. Nomination Methods:

- The National Children's Parliament will be used as a final structure to identify the two -co-opted child commissioners considering that it draws its membership from the community and district structure such as children's corners, Children Reference Group (CRG) and district child participation committees.
- Where it is found that some districts are not represented at the National Children's Parliament, District Social Welfare Offices, using relevant structures, will facilitate identification of children to be invited for interviews by the Selection Committee to ensure that all the districts are represented.

4.0

Evaluation and Confirmation Criteria

The evaluation process ensures fairness and objectivity in identifying the most suitable candidates to serve as child commissioners. The following processes will be followed;

- a) Parliamentary Election:** Election among child parliamentarians at district level from district child parliament to determine representatives. A total of 34 nominated children, one from each district, shall later compete through established criteria by the district i.e debate, dialogues, interviews etc and nominate 5 representatives.
- b) Panel Review:** The panel comprising of Commissioners, Ministry of responsible for Child Affairs, CSO and child representative shall further screen the 5 nominees to come up with 2 children co-opted as child commissioners. The panel will assess nominees based on established criteria, i.e interviews, dialogue etc



- c) Gender** – The selection of the 2 finalists shall ensure gender balance.

Additional Provisions:

- The NCC retains the authority to delegate tasks and set standards for scoring.
- The NCC will ensure regional representation, rotation of districts, and consideration for children with disabilities and albinism.

5.0

Selection Committee for co-opted Child Commissioners

This section outlines the composition of the selection committee for coopting child Commissioners as follows;

- 1) Two (2) representatives from the National Children's Commission (Commissioner to chair the Committee).
- 2) One (1) representative from the Ministry responsible for Child Affairs (Department of Child Affairs).
- 3) One (1) representative from the Ministry of Education.
- 4) One (1) representative from the NGO Coalition on Child Rights (NGOCCR).
- 5) One (1) representative from World Vision International
- 6) One (1) representative from the Parliamentary Committee on Social and Community Affairs.
- 7) One (1) representative from the Parliamentary Committee on Education.
- 8) One (1) representative from the Malawi Human Rights Commission – Child Rights Directorate.



- 9) Two (2) representatives (1 male, 1 female) from the National Children's Parliament.



Note: The committee's composition will be reviewed annually, ensuring gender balance and rotation.

Duties of the Committee:

- 1) Shortlist candidates.
- 2) Prepare interview questions.
- 3) Conduct interviews.
- 4) Recommend successful candidates to the Commission.
- 5) The membership of the committee will be reviewed annually, ensuring gender balance and rotation.

6.0

Quality Assurance/Accountability

To uphold transparency and inclusivity, the NCC will proactively address potential barriers in the recruitment process. The following strategies will be followed:

- a) Conduct awareness campaigns to educate stakeholders on the recruitment process.
- b) Leverage diverse and accessible communication platforms to reach all eligible candidates.
- c) Provide feedback /reporting to relevant stakeholders.



7.0

Feedback Mechanism

An accessible and transparent appeal mechanism to ensure fairness, accountability, and trust in the selection process will be established. The following are the feedback mechanisms to be followed:

- 1) Committee Establishment: The NCC shall appoint a complaint handling committee to handle recruitment grievances.
- 2) Composition:

The Committee shall comprise of eleven (11) members to be drawn from the following Organizations/institutions:

1. Two (2) representatives from the the National Children's Commission (Commissioner – Chair and 1 from the Secretariat);
2. One (1) representative from the Ministry responsible for child Affairs – Child Affairs Directorate.
3. Two (2) representatives from the Civil Society Organizations;
4. One (1) representative from the Judiciary – National Child Justice Forum;
5. One (1) representative from the Office of the Ombudsman;
6. Two (1 male and 1 female) child Representatives from the National Children' Parliament;
7. One (1) representative from the Ministry of Justice;
8. One (1) representative from the Malawi Human Rights Commission –Child Rights Directorate; and
9. One representative from UNICEF
- 10) Filing Appeals: Complaints can be lodged by children, parents, guardians, or stakeholders within 14 days of the announcement of selected child commissioners.
- 11) Resolution Timeline: Complaints will be resolved within 30 days of submission.



- 12) Hearing and Language: Hearings will be conducted in a child-friendly environment using a language the child understands.
- 13) Finality: The decisions of the Appeals and Complaints Committee shall be binding and final.

8.0

Record of Successful Candidates

The NCC shall maintain a comprehensive register documenting the selection process of Child Commissioners. The final report will be shared with Parliament and to be accessed by written request.

9.0

Amendment and Alterations

Changes to the document will be made when need arises through a consultative process with key stakeholders.

10.0

Tenure of Office

The two co-opted Child Commissioners shall serve for a maximum of 12 months after which new child commissioners will be recruited . The term of office shall be renewable for one year if they still meet the criteria.

11.0

Termination/Suspension from Office

The office of a Child Commissioner shall become vacant,

- i. If the Child is absent, without reasonable excuse, from three consecutive meetings of the Commission.



- ii. If the child becomes mentally or physically incapable of performing the duties of a member.
- iii. If a child resigns.
- iv. Upon the death of the child.
- v. If the child is over 18 years of age.

12.0

Filling of Vacant Position

The Commission may, where the office of a Child Commissioner becomes vacant before the expiry of the term of office, appoint another child from the reserve list of successful candidates to serve for the remainder of the term.



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